

UNITED STATES BANKRUPTCY COURT
DISTRICT OF OREGON

In re

Case No. _____
☐ Amended

Debtor

**NOTICE OF MOTION FOR RELIEF FROM
AUTOMATIC STAY IN A CHAPTER 11/12
CASE AND NOTICE OF HEARING
THEREON**

Notice

YOU ARE NOTIFIED THAT:

1. A motion was filed by _____ for relief from the automatic stay protecting the debtor(s) and debtor's property, as provided by 11 U.S.C. § 362.
2. The name and address of the moving party's attorney or, if not attorney, the moving party are:
3. If you wish to resist the motion you must, within 14 days of the service date shown below, file a written response with the clerk at 1050 SW 6th Ave. #700, Portland OR 97204 or 405 E 8th Ave. #2600, Eugene OR 97401. If the response is served in paper, you must also file a certificate showing the response has been served on the moving party's attorney.
4. A response must state the facts upon which relief from the automatic stay is resisted. See [Local Bankruptcy Form \(LBF\) 720.50, Procedures re: Relief from Stay](#), for details.
5. If you file a timely response, a hearing on the motion, which
☐ is [*check this box only if directed to do so by the court*]
☐ is not
an evidentiary hearing at which witnesses may testify, will be held as follows:

Date: _____ **Time:** _____

Location: ☐ Courtroom # _____, _____

☐ Video Hearing. To connect, see www.orb.uscourts.gov/video-hearings.

☐ Telephone Hearing [See [LBF 888](#), *Telephone Hearing Requirements*.]

Call-In Number: (855) 244-8681

Access Code: ☐ 2319 199 8338 for Judge David W. Hercher (dwh)

☐ 2311 562 9438 for Judge Peter C. McKittrick (pcm)

☐ 2303 266 1826 for Judge Teresa H. Pearson (thp)

☐ 2318 130 5070 for Judge Kathryn F. Evans (kfe)

☐ Other _____

If no timely response is filed, the hearing may be cancelled. Parties are encouraged to check the hearing calendar at <https://www.orb.uscourts.gov> after the response deadline has passed.

6. If a timely response is not filed, then either:

a. The court may sign an order without further notice, submitted by the moving party, granting relief from the stay; or

b. The stay will expire under the terms of 11 U.S.C. § 362(e).

Certificate of Service

I certify that on _____ (1) this notice, (2) [LBF 720.50](#) if this notice was served on paper, (3) [LBF 888](#) if this notice was served on paper and a telephone hearing will be held, and (4) the motion, were served pursuant to Federal Rule of Bankruptcy Procedure (FRBP) 4001 and FRBP 7004 on the debtor, U.S. trustee, trustee, members of any committee appointed pursuant to 11 U.S.C. § 1102 or its authorized agent (or, if no committee, on all creditors included on the list filed pursuant to FRBP 1007(d)), and their respective attorneys.

Signature of Moving Party or Attorney

OSB #

(If debtor is movant) Debtor's Address & Last 4 Digits of Taxpayer ID#(s)